

Terms and Conditions for SweetSpots

Effective Date: March 29, 2026

Last Updated: March 29, 2026

Contact: getsweetspots@gmail.com

1. Introduction

These Terms and Conditions (“**Terms**”) govern your use of **SweetSpots** (the “**App**”), owned and operated by **SweetSpots** (“**we**,” “**us**,” or “**our**”). By accessing or using SweetSpots, you agree to these Terms. If you do not agree, do not use the App.

Our **Privacy Policy** (available in the App and wherever we publish it) describes how we collect and use information, including through **Google (Firebase and Sign in with Google)** and **Meta** tools used for advertising measurement. Those practices are part of your agreement with us only as described in the Privacy Policy.

2. Eligibility

You must be at least **13 years old** to use SweetSpots. If you are **under 13**, you may not create an account unless a **parent or legal guardian** has agreed to these Terms and our **Privacy Policy** on your behalf.

3. Account Registration and Security

To use SweetSpots, you must create an account by providing a valid email, username, password, and location information as prompted by the App, or by using **Sign in with Google** where we offer it. You are responsible for maintaining the confidentiality of your credentials and for all activity under your account. Notify us promptly at getsweetspots@gmail.com if you suspect unauthorized access.

You may **delete your account** using the in-App account deletion flow (for example in **Settings**), in addition to contacting us as described in the Privacy Policy.

4. User-Generated Content

SweetSpots allows you to create notes and collections that can be shared via links but are not publicly discoverable within the App by default. You retain ownership of your content but grant SweetSpots a non-exclusive, royalty-free, worldwide license to use, host, reproduce, display, and distribute your content **solely** to operate, provide, and improve the App. We may remove content that violates these Terms or applicable law.

5. Prohibited Uses

You agree not to use SweetSpots to:

- Engage in unlawful, fraudulent, or harmful activity;
- Upload offensive, defamatory, or infringing content;
- Interfere with the operation or security of the App;
- Attempt to reverse-engineer or decompile the App except where applicable law permits;
- Use automated systems to extract data from the App or disrupt the service;
- Impersonate any person or misrepresent your affiliation; or
- Upload content containing malware, viruses, or harmful code.

6. Third-Party Links and Content

SweetSpots allows users to include links to third-party content (for example videos from **YouTube, Facebook, Instagram, TikTok**, or other platforms). We do not control or endorse third-party websites or apps and are not responsible for their content, privacy policies, or practices. You access third-party content at your own risk.

Advertising you see on **third-party platforms** (including **Instagram** or **Facebook**) is subject to those platforms' terms and policies. In-App integrations used to **measure** advertising (see our **Privacy Policy**) do not change the fact that those platforms are independent of us.

7. Intellectual Property

All intellectual property in SweetSpots (including design, functionality, and branding, excluding your content) is owned by SweetSpots or its licensors. You may not copy, reproduce, distribute, or create derivative works from the App without our prior written consent, except as allowed by law.

8. Termination

We may suspend or terminate your account if you violate these Terms, misuse the App, or engage in activity that could harm SweetSpots or other users. You may stop using the App at any time. Upon termination, your right to use the App ceases; provisions that by their nature should survive (including ownership, disclaimers, limitation of liability, indemnity, and governing law) will survive.

9. Disclaimers and Limitation of Liability

SweetSpots is provided on an “**as is**” and “**as available**” basis without warranties of any kind, whether express or implied, to the fullest extent permitted by law. We do not warrant that the App will be error-free, secure, or uninterrupted.

To the **maximum extent permitted by applicable law**, SweetSpots and its owners, directors, and affiliates are **not liable** for any indirect, incidental, special, consequential, or exemplary damages, or for loss of data, profits, goodwill, or service interruption, arising out of or related to your use of the App or third-party services integrated with it (including **Google, Meta**, or map services), even if advised of the possibility of such damages.

In no event shall our aggregate liability for claims arising out of these Terms or the App exceed **the greater of (a) the amounts you paid us for the App in the twelve (12) months before the claim or (b) one hundred Canadian dollars (CAD \$100)**, except where limitation is prohibited by law.

10. Indemnification

You agree to indemnify and hold harmless SweetSpots, its owners, and affiliates from claims, damages, losses, and expenses (including reasonable legal fees) arising from your use of the App, your content, or your violation of these Terms, **to the extent** such claims are not caused by our intentional misconduct or gross negligence.

11. Changes to the Terms

We may modify these Terms at any time. Updates will be reflected by the **Last Updated** date above and, where appropriate, additional notice through the App. Your continued use after changes become effective constitutes your acceptance of the revised Terms, except where applicable law requires explicit consent.

12. Governing Law and Dispute Resolution

These Terms are governed by the laws of the **Province of Ontario** and the **federal laws of Canada**, without regard to conflict-of-law principles. You agree that the courts located in **Ontario, Canada**, have exclusive jurisdiction over disputes arising from these Terms or the App, subject to any non-waivable rights you may have under your local consumer laws.

13. Contact Information

Questions about these Terms:

- **Email:** getsweetspots@gmail.com
- **Entity:** SweetSpots
- **Country:** Canada